

As to the amount requested, these are straightforward motions that are nearly identical. As such, the Court finds that one (1) hour for each motion and one (1) hour to appear for the hearing at \$175 per hour to be reasonable, in addition to the \$75 electronic court filing fees for each motion. **The Court GRANTS a monetary sanction in the total amount of \$500 (\$175 x 2 hours +\$75 + \$75), or \$250 for each motion, against Plaintiff, Genaro Gutierrez, to be paid within 30 days of notice.**

Defendant to give notice.

8. 30-2025-01453654

**400 Spectrum Holdings
LLC vs. McSen Realty
Corp.**

- 1. Motion to Compel Answers to Form Interrogatories**
- 2. Motion to Compel Answers to Special Interrogatories**
- 3. Motion to Compel Production**
- 4. Motion to Deem Facts Admitted**
- 5. Case Management Conference**
- 6. Order to Show Cause re: Appointment of Referee**

Plaintiff 400 Spectrum Holdings LLC ("Landlord") seeks an order compelling Defendant Jie Charlene Yan ("Guarantor") to serve initial responses to Landlord's Special Interrogatories (Set One), Form Interrogatories – General (Set One), and Requests for Production of Documents (Set One) propounded on August 29, 2025 pursuant to CCP§§ 2030.290 and 2031.300, an order to deem the Requests for Admission (Set One) to Guarantor admitted pursuant to CCP§ 2033.280, and for an award of monetary sanctions in the amount of \$1,230.85 payable by Guarantor and Guarantor's attorney Hanzhang Xu, pursuant to CCP§§ 2030.290, 2031.300, 2033.280, and 2023.030(a) (the "Motion").

Pursuant to Cal. Code Civ. P. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response, the party propounding the interrogatories may move for an order compelling response to the interrogatories.

Pursuant to Cal. Code Civ. P. § 2031.300, if a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party making the demand may move for an order compelling response to the demand.

Pursuant to Cal. Code Civ. P. § 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.

Finally, the Code of Civil Procedure requires the Court to issue sanctions against a party for its failure to respond to discovery. Cal. Code Civ. P. §§ 2030.290(c) (interrogatories); 2031.300(c) (requests for production); 2033.280(c) (requests for admission). The Court also has the power to impose monetary sanctions for abuse of the discovery process. Cal. Code Civ. P. § 2023.030(a).

In this instance, on August 29, 2025, Plaintiff's attorney propounded Special Interrogatories (Set One), Form Interrogatories – General (Set One), Requests for Production of Documents (Set One), and Requests for Admission (Set One) (collectively, the "Written Discovery Requests") on Guarantor by serving Attorney Xu electronically. (Decl. of Olinik¶4.) Thereafter, Mr. Xu requested extension, which was granted. Responses were due November 19, 2025. (Id¶5.). As of the date of the filing of this Motion, Landlord has not received any responses to the Written Discovery Requests. (Id¶6.)

		As such, Motions are GRANTED. Defendant Jie Charlene Yan is ordered to provide verified responses to Special Interrogatories, Request for Production of Documents, and Form Interrogatories (Set 1), without objections, within ____ days of service of the Notice of Ruling. The Request for Admissions, Set 1, are deemed <i>admitted</i>. Sanctions against Defendant Jie Charlene Yan in the amount of \$500 to be paid within 30 days. Plaintiff to give notice.
9.	30-2023-01351588 Shulman Roofing, Inc vs. Nguyen	1. Motion for Summary Judgment and/or Adjudication Plaintiff and Cross Defendant Shulman Roofing, Inc. (“SRI”) and Cross-Defendant Joe Shulman (“Shulman”) move for summary adjudication pursuant to CCP§ 437c as to certain causes of action set forth in Defendant and Cross-Complainant’s (“Nguyen”) Fourth Amended [Cross] Complaint. Defendant and Cross-Complainant, TUYET-HOC NGUYEN’s Opposition was untimely served and filed. Pursuant to CCP§437c(b)(2), “All opposition papers must be <i>served</i> on the moving party <i>and filed</i> with the court at least <i>20 days</i> before the date set for hearing on the motion, unless the court shortens the time for good cause shown.” In the Opposition, counsel explains, “Mr. Nguyen’s counsel, Mark D. Holmes, apologizes for this late filing, as Mr. Nguyen’s counsel calendared this Opposition to be filed and served fourteen (14) calendar days prior to the hearing on the Motions – July 2, 2026 in the mistaken belief that the Opposition deadline was fourteen (14) calendar days. (Declaration of Mark D. Holmes in support of Opposition to MSAs (‘Holmes Decl.’) ¶ 5.” As such, the Court finds good cause to CONTINUE this Motion to 9/10/2026. Notably, as to the Opposition, 13 of 15 pages contain footnotes. In total, there are 27 footnotes, which is considerable, and is construed as an attempt to avoid the 20-page limit set forth in CRC, Rule Rule 3.1113(d). Therefore, Nguyen is ordered to re-file the opposition, with minimal footnotes, by 8/21/2026. Moving party to file a Reply by 8/30/2026. <u>Trial date</u> of 9/8/2026 is CONTINUED to November 2, 2026 at 9:00 am in c34. <u>Trial readiness</u> date of 9/3/2026 is continued to 10/22/26 at 11:00 am in C34. Court to give notice.